

SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY

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MARK VIERA,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
MALCOLM LIU (SHIELD #8825), POLICE
OFFICER JOHN DOE #1, POLICE OFFICERS JOHN
DOES #2-4 (names and numbers of who is unknown at
present), and other unidentified members of the New York
City Police Department,

Defendants.
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SUMMONS

Index #

Basis of Venue:
Place of Incident

Plaintiff designates
New York County
as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
November 20, 2015

Respectfully submitted,

/s/
ILISSA BROWNSTEIN, ESQ.
Attorney for Plaintiff
65 Broadway (Suites 813 & 814)
New York, New York 10006
(212) 691-3333

CITY OF NEW YORK: CORPORATION COUNSEL
100 Church Street New York, NY 10007

POLICE OFFICER MALCOLM LIU (SHIELD #8825)
34th Precinct New York, New York

SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY

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MARK VIERA,

VERIFIED COMPLAINT

Index #

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
MALCOLM LIU (SHIELD #8825), POLICE
OFFICER JOHN DOE #1, POLICE OFFICERS JOHN
DOES #2-4 (names and numbers of who is unknown at
present), and other unidentified members of the New York
City Police Department,

Defendants.
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Plaintiff **Mark Viera**, by his attorney, ILISSA BROWNSTEIN, ESQ., as and for the Complaint herein,
alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, the rights secured by the First, Fourth, and Fourteenth Amendments to the United States Constitution and the laws of the State of New York. Plaintiff was unlawfully arrested by the defendants. Plaintiff was deprived of his federal constitutional and state constitutional and common law rights when the individually named police officer defendants unlawfully confined plaintiff, caused the unjustifiable arrest of plaintiff and malicious prosecution of plaintiff. Defendants additionally used excessive force in violation of Plaintiff's constitutional rights protected by the Eighth Amendment and the state tort laws.

PARTIES

2. Plaintiff Mark Viera is a citizen of the United States and a resident of New York, New York.
3. Police Officer Malcolm Liu (Shield #8825) is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
4. Police Officer Malcolm Liu (Shield #8825) is being sued in his individual capacity and official capacity.
5. Police Officer John Doe #1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

6. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.
7. New York Police Officers John Doe #2-4 are and were at all times relevant herein an officer, employee, and agent of the New York City Police Department.
8. Police Officers John Doe #2-4 are being sued in his individual capacity and official capacity.
9. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
10. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
11. Plaintiff in furtherance of his State causes of action filed a timely (with regard to some claims) Notice of Claim upon the City of New York in compliance with Municipal Law Section 50.
12. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
13. The City of New York held a 50(H) hearing examination of the Plaintiff on February 24, 2015.

STATEMENT OF FACTS

14. Mark Viera is 41 years old. He has a 17 year old son.
15. On March 7, 2014, at approximately 9am on Amsterdam Avenue between 166th & 167th Streets, New York, New York, Mr. Viera just came out of a Dunkin' Donuts shop when a guy he did not know approached him and tried to sell him an iPhone.
16. Mr. Viera declined his offer and walked away.
17. After this interaction, police officers ran up on Mr. Viera and claimed he stole the iPhone. As he was being arrested, he saw the man who tried to sell him an iPhone crossing the street and getting into a cab. Mr. Viera pointed to that man and told the officers that that man was the culprit.
18. Mr. Viera was arrested for grand larceny and possession of stolen property.
19. During his arraignment, bail was set and Mr. Viera was further incarcerated. He spent 13 days in jail until he was released by the prosecutor.
20. Mr. Viera attended 6 court appearances.
21. On October 27, 2014, the case was dismissed on motion of the prosecutor.
22. Plaintiff filed a notice of claim on November 22, 2014.

FIRST CAUSE OF ACTION

VIOLATION OF PLAINTIFF'S FOURTH AMENDMENT AND FOURTEENTH AMENDMENT RIGHTS

23. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 22 with the same force and effect as if more fully set forth at length herein.
24. The individually named defendants who were acting in concert and within the scope of their authority at the NYPD arrested and caused plaintiff to be imprisoned without probable cause, maliciously prosecuted, and subjected to excessive force as well as an unlawful search in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty and the right to privacy under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

FALSE ARREST AND FALSE IMPRISONMENT

25. Plaintiff repeats and alleges paragraphs 1 through 24 as if fully set forth herein.
26. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
27. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
28. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

MALICIOUS PROSECUTION

29. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 28 with the same force and effect as if more fully set forth at length herein.
30. The acts and conduct of the defendants constitute malicious prosecution under the Fourth Amendment to the United States Constitution.
31. Defendants commenced and continued a criminal proceeding against plaintiff.
32. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.
33. The prosecution and criminal proceedings terminated favorably to plaintiff on October 27, 2014.
34. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.
35. The individually named defendant Police Officers were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FOURTH CAUSE OF ACTION

NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION

36. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 35 with the same force and effect as if more fully set forth at length herein.
37. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties.

FIFTH CAUSE OF ACTION

FAILURE TO INTERVENE

38. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 37 with the same force and effect as if more fully set forth at length herein.
39. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other members of the NYPD.
40. Defendants failed to intervene to prevent the unlawful conduct described herein.
41. As a result of the foregoing, plaintiff was subjected to an illegal search.
42. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
43. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

NEGLIGENCE

44. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 43 with the same force and effect as if more fully set forth at length herein.
45. Defendants owed a duty of care to plaintiff.
46. Defendants breached that duty of care by subjecting him to an illegal search.
47. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.
48. All of the foregoing occurred without any fault by plaintiff.
49. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION

NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

50. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 49 with the same force and effect as if more fully set forth at length herein.
51. By the actions described herein, the individually named police officer defendants, each acting individually and in concert with one another, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
52. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.
53. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat behavior.

EIGHTH CAUSE OF ACTION

MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

54. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 53 with the same force and effect as if more fully set forth at length herein.
55. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.
56. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department included, but were not limited to policies, customs and practices wherein New York City Police officers arrest individuals without probable cause and create false versions of events to justify their actions.
57. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department were the moving force behind the violation of plaintiff's constitutional rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants,

defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

58. The foregoing customs, policies, usages, practices, and procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.
59. As a result of the foregoing customs, policies, usages, practices, and procedures and rules of defendant City of New York and the New York City Police Department, plaintiff was unlawfully arrested and prosecuted.
60. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

WHEREFORE, MARK VIERA, plaintiff, demands a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law.

Dated: New York, New York
November 20, 2015

Respectfully submitted:

By: /s/
ILISSA BROWNSTEIN, ESQ.
Attorney for Plaintiff
65 Broadway
Suites 813 & 814
New York, New York 10006
(212) 691-3333

TO: CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
New York, New York 10007

POLICE OFFICER MALCOLM LIU (SHIELD #8825)
34th Precinct
New York, New York

ATTORNEY'S VERIFICATION

ILISSA BROWNSTEIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **ILISSA BROWNSTEIN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff's is that Plaintiff is not currently in the county wherein I maintain my office at the time of filing.

DATED: New York, New York
November 20, 2015

/s/
Ilissa Brownstein, Esq.